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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, **v.** **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26CV191136 **MEMORANDUM OF POINTS AND AUTHORITIES** Date: August 28, 2026 Time: 9:00 a.m. Dept: 25 Judge: The Honorable Jenna Whitman Trial Date: Not set Action Filed: May 29, 2026 Reservation Number: 811363998599

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MEMORANDUM OF POINTS AND AUTHORITIES

INTRODUCTION

Petitioner asserts that Respondent California Highway Patrol ("CHP") failed to perform the following purported mandatory duties: first, to certify Petitioner's submitted Form I-918, Supplement B pursuant to California Penal Code section 679.10, subdivision (b); second, to provide a written explanation of the specific reasons for denying to certify Petitioner's submitted Form I-918, Supplement B pursuant to California Penal Code section 679.10, subdivision (g); and third, to apply a rebuttable presumption of helpfulness to Petitioner's certification submission pursuant to California Penal Code section 679.10, subdivision (h). Based on his conclusory allegations, Petitioner seeks a writ of ordinary mandate pursuant to Code of Civil Procedure section 1085, compelling CHP either to certify Petitioner's Form I-918, Supplement B, or to issue a new written decision with further explanation for why Petitioner's certification request was denied.

However, Petitioner's cause of action for failure to certify his Form I-918, Supplement B is wholly without merit because no such ministerial duty exists to issue such a certification under the allegations pled in the petition. Specifically, the Penal Code contemplates that the entity certifying the submitted Form I-918 will exercise its discretion in determining whether the requestor was the victim of a qualifying criminal activity, and, subject to statutory presumptions, whether the requestor was helpful to the investigation or prosecution of that criminal activity. Accordingly, Petitioner cannot contend that CHP has failed to perform a duty mandated by law.

Moreover, even assuming a ministerial duty exists, the Petition alleges no factual basis for such a writ to issue. Petitioner fails to allege facts sufficient to support any of his four causes of action to remedy CHP's supposed failure to perform its mandatory duty to apply a presumption of helpfulness to Petitioner and certify his Form I-918, Supplement B, or to provide an explanation in the form demanded by Petitioner. Nor has Petitioner alleged any facts that, if true, would demonstrate that CHP has failed to comply with state law governing the certification of such immigration visa forms. Accordingly, there are no grounds alleged in the Petition to order CHP to exercise its statutory authority to certify Petitioner's Form I-918, Supplement B or to revise its

written denial. Finally, for the same reasons that Petitioner is not entitled to a writ of ordinary mandate, he is also not entitled to declaratory relief.

No additional facts that Petitioner could allege would alter this conclusion. CHP therefore respectfully requests that the Court sustain this demurrer without leave to amend.

BACKGROUND

I. LEGAL BACKGROUND

Federal immigration law allows a victim of a one or more of several enumerated crimes in the United States to apply for a U Visa, or U nonimmigrant status, when the victim has suffered "substantial physical or mental abuse" as a result, possesses information concerning the crime, and has been helpful to the investigation or prosecution of the crime. (8 U.S.C. § 1101(a)(15)(U)(i) (2012).) In 2000, Congress created the U Visa as part of the reauthorization of the Violence Against Women Act to provide immigrant crime victims an avenue to obtain lawful immigration status and thus encourage cooperation with law enforcement by undocumented victims of crime. (Senate Rules Committee Report, 2015 California Senate Bill No. 674, California 2015-2016 Regular Session (May 31, 2015); *see also* Danielle Kalil, Certified Disaster: A Failure at the Intersection of the U Visa and the Child Welfare System, 35 Geo. Immigr. L.J. 513, 522 (2021) ["The U visa was meant to serve as an investigative tool to aid law enforcement."].) As articulated by a co-sponsor of the Act's reauthorization, one of the primary objectives was to "remov[e] obstacles inadvertently interposed by our immigration laws that many [*sic*] hinder or prevent battered immigrants from fleeing domestic violence safely and prosecuting their abusers by allowing an abusive citizen or lawful permanent resident to blackmail the abused spouse through threats related to the abused spouse's immigration status." (146 Cong. Rec. S10, 192 (daily ed. Oct. 11, 2000) (statement of Sen. Hatch).)

Relevantly, as part of his or her application, a U Visa applicant must file a Form I-918, Supplement B, U Nonimmigrant Status Certification ("Form B") signed by a qualifying law enforcement agency. (8 C.F.R. § 214.14(c)(2)(i) (2007).) The certification must state that the applicant "has been helpful, is being helpful, or is likely to be helpful" in the investigation or prosecution of criminal activity. (8 U.S.C. § 1184(p)(1).) Those qualified to certify Form B

include state or local law enforcement officials. (8 C.F.R. § 214.14(a)(3).) Under federal law, the denial to certify a Form B is a "discretionary act and not subject to judicial review." (*Catholic Charities CYO v. Chertoff* (N.D. Cal. 2008) 622 F. Supp. 2d 865, 887 ["[T]he statute does not contain any mandatory language with regard to actions by law enforcement officials. Specifically, there is no statutory directive to law enforcement officials to issue [law enforcement certifications]."].) As a result, some law enforcement agencies declined to issue Form B certifications altogether. (*See* Leslye E. Orloff et. al., Mandatory U-Visa Certification Unnecessarily Undermines the Purpose of the Violence Against Women Act's Immigration Protections and Its "Any Credible Evidence" Rules-A Call for Consistency, 11 Geo. J. Gender & L. 619, 637 (2010) [describing various police departments nationwide that stopped issuing Form B certifications].)

In 2015, the California Legislature, seeking to impose certain procedural requirements on qualifying law enforcement agencies upon receipt of a Form B, added Section 679.10 to the California Penal Code. (Legislative Counsel's Digest, 2015 California Senate Bill No. 674, California 2015-2016 Regular Session (February 27, 2015).) Specifically, the Penal Code now requires that upon request, a certifying entity "shall fully complete and sign the Form I-918 Supplement B certification" and "shall certify victim helpfulness . . . when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful or is likely to be helpful in the detection or investigation or prosecution of that qualifying criminal activity." (Pen. Code, §§ 679.10, subds (g)(1) & (i)(1). The Penal Code also now requires a Form B certification denial to be accompanied with a written explanation for the denial, which "shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (*Id.* § 679.10, subd. (i)(2).) However, while the Penal Code now requires that certifying entities process Form B certifications upon receipt, the Penal Code does *not* require the certifying entity to find that the requestor is a victim of a qualifying criminal activity, or to find that the requestor has been helpful in the absence of supporting facts or the presence of an unrebutted presumption. In other words, certifying entities retain discretion to deny a Form B

certification request upon determination that the applicant does not meet the requirements for issuance of the certification.

II. PLAINTIFF'S PETITION AND ALLEGATIONS

The following factual background is drawn from the Petition's allegations and attached exhibits. In recounting these allegations, Respondent does not admit their veracity or accuracy. While Petitioner dedicates most of the Petition to reciting allegations at issue in his related tort action against the CHP, he alleges the following relevant facts:

Petitioner is a noncitizen of the United States and a resident of San Joaquin County. (Pet., ¶¶ 12, 14.) On November 1, 2024, while employed as a commercial truck driver, Petitioner parked his vehicle on the shoulder of Interstate 580 East in Livermore, California. (Pet., ¶¶ 33, 34.) While Petitioner's vehicle was parked, two CHP officers approached the vehicle for a welfare check. (Pet., ¶ 35.) The officers questioned Petitioner, and when Petitioner refused to undergo a preliminary alcohol screening test, one officer arrested Petitioner. (Pet., ¶¶ 35-37.) Petitioner then had blood drawn at the CHP Dublin Area Office and was transported to Santa Rita Jail in Alameda County, where he was held from Friday through Wednesday. (Pet., ¶¶ 39-41.)

Petitioner was released on November 5, 2024. *See* Ex. 7 to Petition ("Detention Certificate"). No charges were filed against Petitioner, and he was issued a detention certificate as required by the California Penal Code. (Pet., ¶ 42; *see also* Detention Certificate.) Pursuant to the Penal Code, the detention certificate reflects that Petitioner's time in custody was "a detention only, not an arrest." (*See* Detention Certificate; *see also* Pen. Code, § 851.6, subd. (b) ["In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, the person shall be issued a certificate by the law enforcement agency which arrested him describing the action as a detention"].)

On March 23, 2026, Petitioner submitted a citizen complaint concerning alleged misconduct on behalf of a peace officer to the California Commission on Peace Officer Standards and Training (POST). (*See* March 23, 2026 POST Intake Receipt Letter, Ex. 12 to Petition.) A few days later, a CHP captain confirmed receipt of the POST complaint and informed Petitioner

that he had assigned a Dublin Area Sergeant to investigate the complaint. (*See* March 26, 2026 CHP Receipt Letter, Ex. 11 to Petition.)

On April 9, 2026, Petitioner emailed CHP a letter titled "Formal Request for U Nonimmigrant Status Certification," explaining that he was "the direct victim and sole civilian percipient witness to the November 1, 2024 incident." (*See* April 9, 2026 Certification Request Letter, Ex. 2 to Petition; *see also* April 9, 2026 Email from Petitioner to CHP, Ex. 13 to Petition; Petitioner's "Pre-Completed" Form B, Ex. 4 to Petition; Petitioner's "Supporting Legal Analysis and Evidentiary Summary," Ex. 3 to Petition.) On April 20, 2026, CHP informed Petitioner that it had conducted a thorough review of the November 1, 2024 incident and that it did "not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC)." (CHP Denial Letter, Ex. 1 to Petition.) The denial letter further explained that CHP's review "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC." (*See id.*)

On May 29, 2026, Petitioner filed the instant Petition. He first asserts three writ causes of action against all Respondents: (1) failure to perform [a] mandatory duty under Penal Code section 679.10(b) (*see* Pet., ¶¶ 72-78); (2) failure to perform [a] ministerial duty under Penal Code section 679.10(g) (*see* Pet., ¶¶ 79-84); and (3) failure to apply the rebuttable presumption of helpfulness (*see* Pet., ¶¶ 85-90). Specifically, Petitioner alleges that Respondents had a "mandatory, non-discretionary obligation" to certify his request for Form B certification because he is the purported victim of multiple criminal activities. (Pet., ¶ 73.) In denying his Form B certification request, he alleges that Respondents failed to comply with Section 679.10's "reason-giving" requirement, which he asserts required a "specific, individualized, written statement of the factual and legal basis tied to identified statutory elements" and "analysis of each enumerated qualifying offense Petitioner identified (false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, perjury)." (Pet., ¶ 82.) According to Petitioner, Respondents also failed to apply Section 679.10's rebuttal presumption of helpfulness in denying his Form B certification request. (Pet., ¶¶ 88-89.) Finally, seeking "a judicial declaration—directed to the

construction of section 679.10 and the facial validity of the denial," Petitioner also asserts against all Respondents a civil cause of action for declaratory relief. (*See* Pet., ¶¶ 91-95.)

ARGUMENT

I. LEGAL STANDARD

"Rules governing demurrers to civil complaints apply to mandamus actions." (*Pinto Lake MHP LLC v. County of Santa Cruz* (2020) 56 Cal.App.5th 1006, 1012; see Code Civ. Proc., § 1109.) A petition or complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) A petitioner or plaintiff must "set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action." (*Doheny Park Terrace Homeowners Ass'n, Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation omitted].) Failure to plead sufficient facts subjects the petition or complaint to demurrer for failure to state facts constituting a cause of action. (Code Civ. Proc., § 430.10, subd. (e); *Berger v. California Ins. Guarantee Ass'n* (2005) 128 Cal.App.4th 989, 1006.) "[A]llegations constituting legal conclusions are not provisionally admitted for the purposes of a demurrer." (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291.)

II. A WRIT SHOULD NOT ISSUE AGAINST RESPONDENT BECAUSE THE PETITION FAILS TO STATE FACTS CONSTITUTING ANY CAUSE OF ACTION

"To obtain writ relief under Code of Civil Procedure section 1085, the petitioner must show [1] there is no other plain, speedy, and adequate remedy; [2] the respondent has a clear, present, and ministerial duty to act in a particular way; and [3] the petitioner has a clear, present and beneficial right to performance of that duty." (*County of San Diego v. State of California* (2008) 164 Cal.App.4th 580, 593.)

A. Respondent Has No Ministerial Duty to Certify Petitioner's Form B

Petitioner's first cause of action seeks a writ of mandate under Section 1085 for the CHP's alleged failure to perform its "mandatory duty" under Penal Code section 679.10, subdivision (b) to certify his request for Form B certification. (Pet., ¶ 73.) However, Petitioner alleges no facts

to show that Respondent has a ministerial duty to interpret Section 679.10's definitions of qualifying criminal activity or helpfulness in a manner favorable to Petitioner's interests, or that any other grounds for writ relief are present.

A ministerial duty is one "that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." (*County of Los Angeles v. City of Los Angeles* (2013) 214 Cal.App.4th 643, 653-654.) Where a statute leaves room for discretion, a challenger must show the official acted arbitrarily, beyond the bounds of reason, or in derogation of the applicable legal standards. (*Cal. Correctional Supervisors Org., Inc. v. Dept. of Corrections* (2002) 96 Cal.App.4th 824, 827.)

Whether an entity's action was ministerial or quasi-legislative is a question of statutory interpretation. (*County of Los Angeles v. City of Los Angeles*, *supra*, 214 Cal.App.4th at p. 653.) Courts "examine the language, function and apparent purpose of the statute." (*Weinstein v. County of Los Angeles* (2015) 237 Cal.App.4th 944, 965 [citations and quotation marks omitted].) "In order to construe a statute as imposing a mandatory duty, the mandatory nature of the duty must be phrased in explicit and forceful language." (*Collins v. Thurmond* (2019) 41 Cal.App.5th 879, 914.)

Contrary to Petitioner's assertions, Respondent does not have a ministerial duty to certify a Form B request. To be sure, Section 679.10 requires that upon request, a certifying entity "shall fully complete and sign the Form I-918 Supplement B certification." (Pen. Code, § 679.10, subd. (i)(1).) Section 679.10 also requires that upon request, a certifying entity "shall certify victim helpfulness . . . when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful or is likely to be helpful in the detection or investigation or prosecution of that qualifying criminal activity." (Pen. Code, § 679.10, subd. (g)(1).) But nowhere in Section 679.10 is there a requirement that certifying entities invariably find that the requestor is, in fact, a victim of a qualifying criminal activity, as those terms are defined in the statute, or to find that the requestor has been helpful. In fact, Section 679.10 contemplates that certifying entities retain discretion to find otherwise. The statute provides, in relevant part:

> If a certifying entity *does not certify* a Form I-918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification.
>
> (§ 679.10, subd. (i)(2) (emphasis added).)

Indeed, as Petitioner himself acknowledges, whether "the underlying conduct constitutes qualifying criminal activity" "is committed in the first instance to the certifying entity." (Pet., ¶ 94.)

B. Petitioner Has No Clear, Present and Beneficial Right to the Performance of a Ministerial Duty

Even if a ministerial duty to apply Section 679.10 in Petitioner's favor existed, Petitioner has no "clear, present and beneficial right to the performance of that duty." (*County of San Diego v. State of California*, *supra*, 164 Cal.App.4th at p. 593.) Petitioner's factual allegations do not support his bare legal conclusions that he was the victim of "false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, perjury." *See* Pet., ¶ 82.

Petitioner's primary factual basis for alleging that he was the victim of numerous crimes, including being confined "on the basis of [a] fabricated arrest report" (Pet., ¶ 41), is his *own* transcription of CHP's dashcam recording of the November 1, 2024 incident (*see* CHP Dashcam Recording Transcript, Ex. 5 to Petition), which he submitted to CHP along with his Form B certification request. (Pet., ¶¶ 44-48; *see also* Petitioner's Formal Certification Request, Ex. 2 to Petition; Petitioner's Supporting Legal Analysis and Evidentiary Summary, Ex. 3 to Petition.) Petitioner alleges that this transcription proves CHP officers subjected him to "false imprisonment, felonious assault, and obstruction of justice on November 1, 2024," and that "CHP's own Detention Certificate confirms the arrest lacked justification." (*See* Pet., ¶¶ 48-49; *see also* Ex. 3 to Petition, at 8.) In short, Petitioner alleges that there exist multiple contradictions between the dashcam recording (as transcribed by Petitioner) and the CHP officers' sworn arrest report, showing that his arrest was unjustified and so he was the victim of a qualifying criminal activity. (Pet., ¶¶ 43-48.)

But as pled, at least two of the "contradictions" identified by Petitioner as "smoking gun[s]" in CHP's Arrest-Investigation Report, *see* Ex. 6 to Petition, are not contradictions at all. (*See*

Pet., ¶ 43.) Indeed, as pled, these allegations provide probable cause for the CHP officers to have arrested Petitioner. First, Petitioner alleges that a CHP officer provided a sworn statement that he "could smell the distinct odor of an alcohol beverage emitting from within the vehicle" and "from Newanforbi's breath and person," but challenges this statement by pointing to the dashcam recording, in which "[n]either officer verbalizes detection of any odor of alcohol." (Pet., ¶ 44.) However, an officer's decision not to speak his thoughts aloud does not mean those thoughts did not exist. Second, Petitioner asserts that the CHP Arrest-Investigation Report misleadingly implied that an alcoholic beverage was present in the vehicle but goes on to allege that "[a]n empty Mike's Hard Lemonade can was observed." (Pet., ¶ 47.)

These allegations, taken together, support a finding that the CHP officers had probable cause to arrest Petitioner for driving under the influence, and that they did not subject Petitioner to "false imprisonment." (*See* Pen. Code, § 236 ["False imprisonment is the unlawful violation of the personal liberty of another."].) "Probable cause exists when the facts known to the arresting officer would persuade someone of 'reasonable caution' that the person to be arrested has committed a crime." (*People v. Thompson* (2006) 38 Cal. 4th 811, 818.) In *Thompson*, the California Supreme Court held that probable cause to arrest the defendant for a DUI existed where the officer did not see the defendant drinking, but did see him have difficulty walking, toss an empty vodka bottle out of his car, and pass out again in the vehicle. *Id.* at p. 819. Here, based on Petitioner's own allegations, the officers witnessed Petitioner asleep in his vehicle on the side of the road, an empty alcohol bottle in Petitioner's vehicle, smelled the "strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person," and demonstrated a series of Field Sobriety Tests to Newanforbi, "which he did not perform as explained and demonstrated." (Pet., ¶¶ 34-35, 43-48; CHP Arrest-Investigation Report, Ex. 6 to Petition.) Petitioner's own transcription of CHP's dashcam recording supports the officers' arrest-investigation report. (*See* Ex. 5 to Petition.) In Petitioner's transcription, the officers identify Mike's Hard Lemonade as "source alcohol" and tell Petitioner that "we've got you sleeping right here." (*See* Ex. 5 to Petition, at 4, 6.) At one point, Petitioner declined to perform one of the sobriety tests, saying that he did not think he could perform it. (*See id.* at 9.)

Indeed, Petitioner's own transcription of his arrest undermines his assertion that he was subject to "felonious assault and battery." (Pet., ¶ 75; *see* Ex. 5 to Petition.) At no point does the transcript reflect that the officers use "willful and unlawful" "force or violence" upon Petitioner, *see* Penal Code § 242, or attempt to "commit a violent injury" to Petitioner, *see id.* § 240. Nor does Petitioner elsewhere present any factual allegations to support these conclusory assertions.

Similarly, Petitioner has not adequately alleged obstruction of justice[1] or perjury on the part of the officers, given that he offers no factual support for his assertion that the officers "falsely report[ed] odor of alcohol, slurred speech, and confusion," and engaged in a "cover-up." (Pet., ¶ 49; *see* Pen. Code § 118 ["No person shall be convicted of perjury where proof of falsity rests solely upon contradiction by testimony of a single person other than the defendant."].)

C. Respondent Has No Ministerial Duty to Provide a Written Explanation for Its Certification Denial In the Form Demanded By Petitioner

Petitioner's second cause of action seeks a petition for writ of mandate under Section 1085 for the CHP's alleged failure to perform its "ministerial" duty to provide a reason for its certification denial. (Pet., ¶¶ 79-84.) However, Petitioner alleges no facts to show that Respondent has a ministerial duty to provide an explanation in the form demanded by Petitioner.

Petitioner insists that the CHP was required to "identify which statutory element fails," "name a single enumerated qualifying offense considered or rejected," "engage with the dashcam evidence in CHP's own custody," "reconcile its conclusion with CHP's own section 851.6 detention certificate," "apply the rebuttable presumption of helpfulness," or "explain what 'standard of qualifying criminal activity' was applied, or how the 'similar activity' catch-all in section 679.10(d) was analyzed."

But the statute does not support Petitioner's demands. Section 679.10. subdivision (i)(2) is clear (and only two sentences long). It provides: "If a certifying entity does not certify a Form I-918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any

[1] Petitioner appears to interpret "obstruction of justice" as the fabrication of evidence. *See* Petitioner's Supporting Legal Analysis and Evidentiary Summary, Ex. 3 to Petition, at 3-4.

reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (Pen. Code, § 679.10, subd. (i)(2).) In other words, the *only* specificity the statute requires from a written denial is "specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (*See* Pen. Code § 679.10, subd. (i)(2).) Simply put, Petitioner has alleged no such requests for cooperation (and there were none, given the nature of the incident), and so the statute does not require specific details of nonexistent requests for cooperation.

As such, the CHP's denial letter, incorporated into the petition, meets the requirements of section 679.10. It informed Petitioner that the November 1, 2024 incident did "not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC)." (CHP Denial Letter, Ex. 1 to Petition.) The denial letter further explained that CHP's review "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC." (*See id.*) It thus provided a "written explanation" for the denial (no qualifying criminal activity) and therefore, as noted, did not need to provide details regarding requests or refusals to cooperate.

D. The Rebuttable Presumption of Helpfulness Is Not Applicable On the Facts Alleged

Petitioner's third cause of action seeks a petition for writ of mandate under Section 1085 for the CHP's failure to apply the rebuttable presumption of helpfulness pursuant to Penal Code section 679.10(h). (Pet., ¶ 86.) However, Petitioner has not shown that Respondent has a ministerial duty to apply the rebuttable presumption on the facts alleged.

The statute provides, in relevant part: "[T]here is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement." (Pen. Code, § 679.10, subd. (h).)

Petitioner insists that "[t]he presumption attaches as a matter of law on this record" because "[h]e has never refused or failed to provide any information or assistance reasonably requested by

CHP, POST, the DMV, or any other investigating entity." (Pet., ¶ 87.) While it may be true that Petitioner has never refused to assist with an investigation into criminal activity, he has not alleged that CHP (or any other agency, for that matter) requested information and assistance into "the detection, investigation, or prosecution of a qualifying criminal activity." (*See* Pen. Code, § 679.10, subd. (h).) Accordingly, the presumption is plainly not applicable.

III. PETITIONER IS NOT ENTITLED TO HIS REQUESTED DECLARATORY RELIEF

In addition to his claim for writ of mandate, Petitioner brings a claim for declaratory relief under section 1060. (Pet., ¶¶ 91-95.) Petitioner asks the Court to declare the following (*see* Pet., ¶¶ 93(a)-(f)):

- That Penal Code section 679.10, subdivision (i)(2)[2] imposes a ministerial duty on a certifying entity to provide a written explanation of the specific reasons for denying a Form I-918, Supplement B certification request, identified by reference to the statutory elements;
- That Penal Code section 679.10, subdivision (i)(2)'s requirement is not satisfied by written denials that "recite only that the incident 'does not meet the standard,' do not identify which statutory element is not satisfied, do not name any enumerated qualifying offense considered or rejected, and do not engage with the agency's own contemporaneous record;
- That CHP's April 20, 2026 denial letter, as a matter of law, does not satisfy Penal Code section 679.10, subdivision (i)(2)'s requirement for a written explanation;
- That the reasonable presumption of helpfulness under Penal Code section 679.10, subdivision (h) attaches in any case where the victim has not refused or failed to provide information and assistance reasonably requested, and may be overcome only be evidence of such refusal or failure documented by the certifying entity;
- That Penal Code section 679.10, subdivision (k) prohibits any reliance, in support of a denial of certification, on the absence of a current investigation, the absence of charges filed, the closing of a case, or the absence of prosecution or conviction; and
- That a reference to Penal Code section 679.10, subdivision (d)'s "substantially similar" provision without identifying the offenses analyzed, is insufficient.

Petitioner is not entitled to any of the requested relief. First, to the extent Petitioner seeks advisory opinions on purely legal questions, these requests are not cognizable. Section

[2] Petitioner cites Section 679.10, subdivision (g), but this appears to be an error, as that section does not set forth any requirement for written explanations of a certification denial.

1060 provides: "Any person . . . who desires a declaration of his or her rights or duties with respect to another . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action . . . in the superior court for a declaration of his or her rights and duties . . . ." (Code Civ. Proc., § 1060.) "The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject." (*Linda Vista Village San Diego Homeowners Ass'n, Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 181 [citations and quotation marks removed].) "The 'actual controversy' language in Code of Civil Procedure section 1060 encompasses a probable *future controversy* relating to the legal rights and duties of the parties. For a probable future controversy to constitute an 'actual controversy,' however, the probable future controversy must be ripe. A controversy is ripe when it has reached, *but has not passed,* the point that the facts have sufficiently congealed to permit an intelligent and useful decision to be made." (*County of San Diego v. State of California*, *supra*, 164 Cal.App.4th at p. 606 [emphasis in original] [citations and quotation marks omitted].)

Critically, "[d]eclaratory relief operates prospectively to declare future rights, rather than to redress past wrongs." (*County of San Diego v. State of California*, *supra*, 164 Cal.App.4th at p. 607, quoting *Canova v. Trustees of Imperial Irrigation District Employee Pension Plan* (2007) 150 Cal.App.4th 1487, 1497.) A declaratory judgment "serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them." (*Id.* at p. 608, quoting *Babb v. Superior Court* (1971) 3 Cal.3d 841, 848.) "An actual controversy under the declaratory relief statute is one which admits of definitive and conclusive relief by judgment within the field of judicial administration as distinguished from an advisory opinion upon a particular or hypothetical state of facts." (*Monterey Coastkeeper v. Central Coast Regional Water Quality Control Bd.* (2022) 76 Cal.App.5th 1, 13 [internal citations and quotation marks omitted].) "Where the allegations of the complaint reveal the controversy to be . . . an attempt to obtain an advisory opinion from the court, the fundamental basis of declaratory relief is lacking." (*Rhonda S. v. Kaiser Foundation Health Plain, Inc.* (2023) 94 Cal.App.5th 643, 648.)

In line with these principles, "[a]n action for declaratory relief is not appropriate to review an administrative decision." (*State of California v. Superior Court* (1974) 12 Cal.3d 237, 249; *see also Zetterberg v. State Dept. of Public Health* (1974) 43 Cal.App.3d 657, 663 ["A difference of opinion as to the interpretation of a statute as between a citizen and a governmental agency does not give rise to a justiciable controversy [for declaratory relief]."]; *Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board*, *supra*, 76 Cal.App.5th at p. 18 ["Declaratory relief generally is not available to use the courts to tell an administrative agency how to do its job."].)

Petitioner's declaratory relief claim is manifestly improper because it seeks advisory opinions regarding the proper interpretation and application of Penal Code sections 679.10, subdivisions (d), (i)(2), (h), and (k), and therefore no actual, ripe controversy exists. Courts may not expound on the meaning of statutes guiding agency action on purely legal grounds when no present controversy exists. (*See, e.g.*, *Zetterberg v. State Dept. of Public Health*, *supra*, 43 Cal.App.3d at p. 663 [rejecting plaintiffs' request for the court to declare that defendant state agencies had the power and duty to enforce pollution standards under an interpretation of a state law].) Further, there is no "future controversy." (*County of San Diego v. State of California*, *supra*, 164 Cal.App.4th at p. 606.) Respondent has already considered Petitioner's certification request and denied it.

Second, to the extent that Petitioner asks the Court to declare that Respondent must reverse or further expound on its denial of Petitioner's certification request, such relief is inappropriate, because declaratory relief cannot unwind a past administrative decision. Courts have rejected similar efforts to use declaratory relief to redress prior administrative action. (*State of California v. Superior Court*, *supra*, 12 Cal.3d at p. 249 [rejecting plaintiffs' attempt to use declaratory relief to challenge state agency's denial of permit]; *Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 155 [denying plaintiff's declaratory relief claim that sought to compel court to interpret city regulations differently than city departments had].)

There is yet one more reason why Petitioner's declaratory relief claim fails to state a cause of action. Where a petitioner proceeds by a combined petition for writ of mandate and civil

action for declaratory relief, a ruling in favor of the respondent on the writ petition entitles the respondent to a judgment disposing of the entire matter if the ruling resolves allegations essential to petitioner's civil claims. (*Griset v. Fair Political Practices Commission* (2001) 25 Cal.4th 688, 697-700.) In *Griset*, for example, the Supreme Court held that the trial court's resolution of plaintiff's writ claims on the constitutionality of a law necessarily disposed of plaintiff's causes of action to enjoin future enforcement of the law and to enjoin a state agency from enforcing fines for violation of that law. (*Id*. at pp. 699-700.)

Here, petitioner seeks a declaration that CHP's April 20, 2026 denial letter, as a matter of law, does not satisfy Penal Code section 679.10, subdivision (i)(2)'s requirement for a written explanation. (*See* Pet., ¶ 93(c).) If Petitioner is not entitled to a writ of ordinary mandate because the Court determines that there is no ministerial duty compelling CHP to provide a written denial in the form demanded by Petitioner, the declaration Petitioner seeks becomes moot.

For these reasons, Petitioner is not entitled to any writ of ordinary mandate, and accordingly, his declaratory relief claim is moot.

CONCLUSION

The Court should sustain the demurrer and dismiss without leave to amend.

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Respectfully submitted,

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